

25STCV19558 25STCV19558

County: los-angeles

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Case Number: 25STCV19558 Hearing Date: August 18, 2026 Dept: 729

Superior Court of California

County of Los Angeles

DEPARTMENT 729

TENTATIVE RULING

LAURA JEFFREY,

vs.

FCA US LLC,

et al.

Case No.:

25STCV19558

Hearing Date: August 18, 2026

Moving Defendant FCA US LLC's unopposed motion to compel arbitration of Plaintiff Laura Jeffrey's claims in this action is granted. This case is stayed pending arbitration and mediation.

The Court sets a case management conference for August 18, 2027, at 8:30 a.m. The parties are directed to submit a joint statement five calendar days in advance, apprising the Court of the status of the arbitration.

Defendant FCA US LLC ("FAC") ("Moving Defendant") moves unopposed for an order compelling arbitration of all claims asserted by Plaintiff Laura Jeffrey ("Jeffrey") ("Plaintiff") and to stay the action pending arbitration. (Notice of Motion, pgs. 1-2; C.C.P. §§1280 et seq.; 9 U.S.C. §§1 et seq.)

Background

On June 30, 2025, Plaintiff filed her operative complaint ("Complaint") against Moving Defendant and Non-moving Defendant Cole Chrysler Dodge Jeep Ram Fiat ("Cole") (collectively, "Defendants") alleging six causes of action: (1) violation of Civil Code §1793.2(d) [against FCA]; (2) violation of Civil Code §1793.2(b) [against FCA]; (3) violation of Civil Code §1793.2(a)(3) [against FCA]; (4) breach of the implied warranty of merchantability (Civ. Code §§1791.1, 1794, 1795.5) [against FCA]; (5) negligent repair [against Cole] ; and (6) fraudulent inducement-concealment [against FCA].

Defendant filed the instant motion on May 29, 2026. As of the date of this hearing no opposition has been filed.

Motion to Compel Arbitration

A. Arbitration Agreement

1.

The Arbitration Agreement is enforceable

Federal

law provides for enforcement of this Arbitration Agreement. The Federal Arbitration Act, 9 U.S.C. §1, et seq. ("FAA"), establishes a strong federal policy in favor of arbitration of disputes where a written arbitration agreement exists. Section 2 of the FAA provides, in pertinent part that "[a] written provision . . . to settle by arbitration a controversy thereafter arising out of such contract . . . shall be valid, irrevocable, and enforceable." (9 U.S.C. §2.)

The purpose of the FAA is to "reverse the longstanding judicial hostility to arbitration agreements." (Gilmer v. Interstate/Johnson Lane Corp. (1991) 500 U.S. 20, 24.) The

FAA places arbitration agreements “on an equal footing with other contracts and [requires courts] to enforce them according to their terms.” (AT&T Mobility, LLC v. Concepcion (2011) 563 U.S. 333, 339; see also Rent-A-Center West, Inc. v. Jackson (2010) 561 U.S. 63, 67 [“The FAA reflects the fundamental principle that arbitration is a matter of contract.”].) The FAA will preempt not only a state law that “discriminat[es] on its face against arbitration,” but also a state law that “covertly accomplishes the same objective by disfavoring contracts that (oh so coincidentally) have the defining features of arbitration agreements.” (Kindred Nursing Centers Limited Partnership v. Clark (2017) 137 S.Ct. 1421, 1426.)

The FAA restricts a court’s inquiry related to compelling arbitration to two threshold questions: (1) whether there was an agreement to arbitrate between the parties; and (2) whether the agreement covers the dispute. (Howsam v. Dean Witter Reynolds, Inc. (2002) 537 U.S. 79, 84.) Here, both criteria are satisfied. First, Plaintiff agreed to arbitration on August 29, 2023, when she executed the Agreement to Arbitrate (“Arbitration Agreement”). (Decl. of Long ¶4, Exh. B.) Second, the Arbitration Agreement expressly covers “any dispute between you and FCA UC LLC and its affiliates.” (Decl. of Long ¶4, Exh. B.)

California law also favors arbitration for dispute resolution. The California Arbitration Act (“CAA”), codified at C.C.P. §1281 et seq., provides, “A written agreement to submit to arbitration an existing controversy or a controversy thereafter arising is valid, enforceable and irrevocable, save upon such grounds as exist for the revocation of any contract.” (C.C.P. §1281; see also Grafton Partners L.P. v. Superior Court (2005) 36 Cal.4th 944, 955 [“[U]nlike predispute jury waivers, predispute arbitration agreements are specifically authorized by statute.”].)

“California law, like federal law, favors enforcement of valid arbitration agreements.” (Armendariz v. Foundation Health Psychcare Services, Inc. (2000) 24 Cal.4th 83, 97, 99.) The public policy in favor of arbitration is so strong that California courts have held that an employee is “bound by the provisions of the [arbitration] agreement regardless of whether [he] read it or [was] aware of the arbitration clause when [he] signed the document.” (Brookwood v. Bank of America (1996) 45 Cal.App.4th 1667, citing Macaulay v. Norlander (1992) 12 Cal.App.4th 1.) The only prerequisite for a court to order arbitration is a determination that the parties have entered into an

agreement to arbitrate the dispute. (United Transportation Union v. Southern California Rapid Transit District (1992) 7 Cal.App.4th 804, 808.) Thus, arbitration must be ordered “unless the agreement clearly does not apply to the dispute in question.” (Vianna v. Doctors’ Management Co. (1994) 27 Cal.App.4th 1186, 1189.)

Moving

Defendant proved the existence of an arbitration agreement with Plaintiff. First, Plaintiff agreed to arbitration on August 29, 2023, when she executed the Agreement to Arbitrate (“Arbitration Agreement”). (Decl. of Long ¶4, Exh. B.) Second, the Arbitration Agreement expressly covers “any dispute between you and FCA UC LLC and its affiliates.” (Decl. of Long ¶4, Exh. B.)

Based

on the foregoing, Moving Defendant proved the existence of a valid Arbitration Agreement with Plaintiff that is enforceable by Moving Defendant.

2.

Covered Claims

The Arbitration Agreement expressly covers “any dispute between you and FCA UC LLC and its affiliates.” (Decl. of Long ¶4, Exh. B.)

Plaintiff’s

claims are a dispute with FCA pertaining to the Subject Vehicle as alleged in her pleading. (See Complaint.) Plaintiff’s Claims in the Complaint allege that this action arises out of the warranty obligations of Moving Defendant, for a vehicle purchased by Plaintiff, for which Moving Defendant issued a written warranty, and for which implied warranties arose by virtue of the purchase. Therefore, Plaintiff’s claims necessarily arise out of the “relationship” between the parties insofar as it relates to the sales and repair transactions between the parties. Similarly, Plaintiff’s remaining claim for fraudulent inducement necessarily arises out of and relates to the purchase and condition of the vehicle.

Based

on the foregoing, Moving Defendant met its burden to establish that the

Arbitration Agreement covers the causes of action asserted in Plaintiff's Complaint.

B.

Unconscionability

"[P]rocedural

and substantive unconscionability must both be present in order for a court to exercise its discretion to refuse to enforce a contract or clause under the doctrine of unconscionability." (Armendariz, 24 Cal.4th at pg. 102.) Courts invoke a sliding scale which disregards the regularity of the procedural process of the contract formation, that creates the terms, in proportion to the greater harshness or unreasonableness of the substantive terms themselves, i.e., the more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to conclude that the term is unenforceable, and vice versa. (Id., at pg. 114.) Plaintiff bears the burden of proving that the provision at issue is both procedurally and substantively unconscionable.

Plaintiff

does not oppose Moving Defendant's motion and thereby concedes her arguments on unconscionability.

C.

Stay of Current

Action

Pursuant

to C.C.P. §1281.4, if an application has been made to a court involving order to arbitrate a controversy and such application is undetermined, the court where the application is pending shall, upon motion of a party to the action, stay the action until the application for an order to arbitrate is determined. (C.C.P. §1281.4.)

Accordingly,

this case is stayed pending arbitration.

D.

Conclusion

Moving Defendant's
unopposed motion to compel arbitration is granted.

The case is
stayed pending arbitration. The Court sets a case management conference for August
18, 2027, at 8:30 a.m. The parties are
directed to submit a joint statement five calendar days in advance, apprising
the Court of the status of the arbitration.

Moving Party to
give notice.

Dated: August _____, 2026

Hon. Daniel M. Crowley

Judge of the Superior Court